The Copyright Act, 1957

Copyright ownership, exclusive rights, licensing, infringement and permitted uses

PROJECT LEGAL REFERENCE DOCUMENT

Requested filename: copyright_act.pdf

Prepared for project implementation / academic use | Reference date: 17 September 2026

Important use note

This project reference edition is prepared for software, AI, data, and academic-project implementation. It summarizes selected provisions and practical implementation implications. It is not an official certified copy, does not replace the current statute, subordinate legislation, notifications, case law, or professional legal advice.

Document metadata

Field	Value
Act number	14 of 1957
Enactment date	4 June 1957
Enforcement	21 January 1958
Primary ministry	Ministry of Commerce and Industry
Department	Department for Promotion of Industry and Internal Trade
Official source	India Code
Source version used	India Code: a1957-14.pdf

Overview

The Copyright Act, 1957 consolidates Indian copyright law. Its framework covers protected works, copyright and exclusive rights, ownership, assignment, licensing, term, infringement, civil remedies, and specified exceptions. For software projects, copyright issues may arise for source code, documentation, graphics, datasets, training/reference material, website content, model artefacts, and other original works.

Selected provisions and project relevance

Section 2

Interpretation

Contains statutory definitions, including definitions relevant to literary, artistic, musical, cinematograph, sound-recording and computer-related works.

Section 13

Works in which copyright subsists

Identifies categories of works in which copyright subsists subject to the Act. Project teams should inventory which materials are original, licensed, public-domain, or supplied by third parties.

Section 14

Meaning of copyright

Defines the bundle of exclusive rights constituting copyright in relation to different categories of works.

Sections 17-19

First ownership and assignment

The Act addresses first ownership and requirements relating to assignment. Employment, commissioned development, and vendor arrangements should expressly state IP ownership and licensing terms.

Section 22

Term for specified published works

Sets the statutory term for published literary, dramatic, musical and artistic works subject to the Act and applicable exceptions.

Section 30

Licences by copyright owners

Provides for licensing by copyright owners. Projects using third-party content should retain written licences and evidence of scope, duration, territory, and permitted uses where applicable.

Section 51

When copyright is infringed

Sets out circumstances constituting infringement under the Act, subject to its statutory wording and exceptions.

Section 52

Certain acts not to be infringement

Provides statutory exceptions for specified acts. Whether a particular use is covered is fact-specific and may require legal analysis.

Sections 55 and 58

Civil remedies and rights against infringing copies

The Act provides civil remedies and certain rights regarding infringing copies. Software and content projects should maintain provenance and licence records to reduce avoidable disputes.

Project implementation checklist

1. Maintain a provenance register for every external dataset, image, article, library, font, model, code snippet, and media asset.

2. Store the licence text or source record with the asset and record any attribution, redistribution, field-of-use, or commercial-use restrictions.

3. Separate internally created assets from third-party assets in repositories and deployment packages.

4. Use dependency and licence scans for software components and retain a software bill of materials where appropriate.

5. For datasets and AI systems, assess both copyright and any separate contractual, privacy, confidentiality, database, or sector-specific restrictions.

6. Do not assume that internet availability means unrestricted reuse; obtain permission or rely on a clearly applicable legal basis.

Suggested RAG / search queries

"What types of works receive copyright protection?"

"What rights are included in copyright under Section 14?"

"What is the difference between assignment and licence?"

"When can an act fall within Section 52?"

"What records should a project maintain for third-party content?"

Source and verification

Primary source: India Code, the official Government of India legislative information portal. The source used for this reference edition is listed below. Verify the latest consolidated text and all applicable amendments, rules, notifications, and judgments before real-world reliance.

https://www.indiacode.nic.in/bitstream/123456789/1367/5/a1957-14.pdf

Reference prepared on 17 September 2026.

Project note: These documents are designed to be easy to index in a document/RAG pipeline. The section labels, summaries, and implementation notes are intended to support retrieval and system demonstrations; the underlying statute remains the authoritative legal source.